

Authority for Personal Data
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Dutch Healthcare Authority
Attn: Ms. G. Engwirda
P.O. Box 3017
3502 GA Utrecht

Date

8 July 2024

Our reference

z2024-007838

Your letter dated

29 February 2024

Contact person

070 8888 500

Your reference

0481514/1520424

Subject

Sectoral regulations on declaration requirements

Dear Ms. Engwirda,

In your letter dated 29 February 2024, the Authority for Personal Data (AP) was consulted based on the provisions of Article 36, paragraph 4 of the General Data Protection Regulation (GDPR) regarding approximately 20 (draft) sectoral NZa regulations. You indicate that this submission is made 'in bulk' because it concerns highly comparable regulations that contain 'standard' provisions regarding the personal data that healthcare providers must provide to health insurers when submitting claims. The data processing resulting from the regulations is therefore comparable.

The AP has several comments on the drafts that require adjustments to the text and the explanation.

Main Points

- The justification for the necessity of processing the personal data specified by the NZa for the implementation of the law is too generic. The explanation needs to be supplemented with the frameworks and/or criteria used in determining this. Specific provisions that deviate from this can and must be explained in addition.
- The specification of the nature and scope of the mandatory data sets to be provided must be formulated restrictively.
- The provisions regarding claims in 'mutual services' require supplementation.

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Scope of the Regulations

Substantively, the Regulations primarily provide for a specification and concretization of which personal data must be provided by the healthcare provider to health insurers when submitting claims. Additionally, some of these Regulations also include a specification of personal data that must be processed by the healthcare provider in their administration. In some of the Regulations, there is also a specific situation and/or task of the NZa that necessitates specific data processing.

Legislative Assessment

Justification of the necessity of the nature and scope of the data sets to be provided with the claim
In the explanation accompanying the Regulations, it is stated that there is a necessity for processing the data sets specified in the Regulations, without further substantiation. There is also no provision for further explanation and justification of the differences made in what is prescribed for different sectors regarding the nature and scope of the personal data to be provided. The AP observes that the explanations accompanying the Regulations do not further clarify why a specific type of obligation is imposed for the specific sector or form of care, nor is it further substantiated why this type of obligation is necessary in the relevant sector for the implementation of the law. The NZa thus does not meet its responsibility to clarify and substantiate that the specifications and concretizations included in the Regulations regarding the (legal) obligation of healthcare providers to provide data are necessary for the implementation of the law. The explanations currently provided and references to tasks under the Healthcare Market Regulation Act (Wmg) are too generic for this purpose. The NZa provides insufficient insight into the (undoubtedly internally established and applied by the NZa) frameworks with criteria for determining the nature and scope of the various claim sets.

The AP concludes that the explanation must be supplemented with the main lines of the generally applicable policy framework and the criteria included therein. Deviating specific provisions for a particular sector can and must be explained in addition.

Limitation of Obligations

In the specification of the personal data that must be provided with the claim, terms such as 'at least' or 'in any case' are frequently used. This suggests room for the potential provision of 'more personal data'. In general, the Court of Justice of the EU requires, in light of the Charter, that legislation regarding the processing of personal data is clear and precise, and that its application is predictable for (in this case) the patient. A provision that only provides a kind of minimum does not meet this requirement. Also, considering the confidentiality obligation resting on the healthcare provider, a restrictively defined obligation to provide data, which can occur without the patient's consent, is indicated.

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The AP concludes that the specifications of data to be provided with declarations included in the Regulations must be listed exhaustively.

Basis for data provision in 'mutual services'

The Regulations contain provisions regarding the manner of declaration in mutual services by care providers. Although they stipulate that only the so-called 'commissioning care provider' may submit the declaration, the Regulations do not provide for an explicit obligation for the 'executing care provider' to supply the necessary personal data to that 'commissioning care provider'. In connection with the confidentiality obligation resting on that 'executing care provider', such an explicit provision is necessary.

The AP concludes that the NZa must provide for an explicit provision to create a solid basis for mutual data provision for the purpose of declaration in such situations.

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

Disclosure

This legislative assessment will be published on the AP's website within two weeks.

Sincerely,

Authority for Personal Data,

Aleid Wolfsen
Chairman

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-Appendix

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Assessment framework AP

The AP examines whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable to achieve the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that less infringe upon the fundamental rights of the individuals concerned (subsidiarity);
3. the interference is not disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (proportionality);
4. the draft is sufficiently clear and precise regarding the scope and is predictable in application (legal certainty);
5. the draft sufficiently indicates under which circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and
6. the draft is binding under national law (bindingness under national law).

The AP pays particular attention to the rights of data subjects and the conformity of the draft with Article 6, paragraphs 1 and 3, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680) and with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:

- (a) processing must be lawful, fair, and transparent with respect to the data subject;
- (b) personal data may only be collected for specified, explicitly defined, and justified purposes; and
- (c) processing must be adequate, relevant, and limited to what is necessary for the purposes.

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